

PURCHASE AND SALE AGREEMENT

Residential Real Estate | Agreement No. PSA-2024-TX-0192 | State of Texas

BINDING CONTRACT — PLEASE READ CAREFULLY BEFORE SIGNING

Agreement Date:	October 3, 2024	Status:	Executed
Purchase Price:	\$485,000.00	Currency:	USD — United States Dollar
Closing Date:	November 4, 2024	Possession Date:	November 4, 2024
Earnest Money:	\$9,700.00	Governing Law:	State of Texas

1. PARTIES

BUYER

Name: Robert J. and Karen L. Harrington
Address: 4812 Balcones Drive, Apt 204
Austin, TX 78731
Phone: (512) 555-0271
Email: rharrington@austinmail.com

SELLER

Name: Patricia A. Donovan
Address: 1506 Westover Hills Blvd
Austin, TX 78746
Phone: (512) 555-0348
Email: pat.donovan@gmail.com

2. PROPERTY DESCRIPTION

Address: 1506 Westover Hills Boulevard, Austin, TX 78746

Property Type: Single Family

Legal Description: Lot 22, Block 4, Westover Hills Section III, Travis County, Texas, as recorded in Volume 81, Page 14 of the Deed Records of Travis County, Texas.

APN: 04-2214-0004-00022

Description: Three-bedroom, two-bathroom single-family home built in 2009. Approximately 1,875 square feet. Two-car attached garage. Backyard with covered patio. Kitchen remodeled in 2022. HVAC replaced 2021. Located in the Eanes Independent School District.

3. PURCHASE PRICE AND EARNEST MONEY

Item	Amount	Details
Purchase Price	\$485,000.00	Total consideration for the Property
Earnest Money Deposit	\$9,700.00	Due within 3 business days of execution
Earnest Money Due Date	October 8, 2024	Delivered to Title Company
Earnest Money Holder	Lone Star Title Company	300 W. 6th St., Suite 500, Austin, TX 78701
Balance at Closing	\$475,300.00	Purchase price less earnest money

4. FINANCING CONTINGENCY

Financing Contingency: YES Loan Type: Conventional Loan Amount: \$388,000.00 (approximately 80% LTV) Interest Rate: 6.875% per annum (30-year fixed) Financing Deadline: October 25, 2024 If Buyer is unable to obtain a written loan commitment by the Financing Deadline, either party may terminate this Agreement and the Earnest Money shall be returned to Buyer.
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5. INSPECTION CONTINGENCY

Inspection Contingency: YES Inspection Deadline: October 14, 2024 Buyer shall have the right to conduct a professional home inspection within the inspection period. Buyer may terminate or negotiate repairs based on inspection findings.

6. APPRAISAL CONTINGENCY

Appraisal Contingency: YES Appraisal Deadline: October 21, 2024 This Agreement is contingent upon the Property appraising at or above the Purchase Price. If the appraised value is below the Purchase Price, Buyer and Seller shall have 5 days to negotiate a resolution or either party may terminate.
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7. TITLE AND CLOSING

Title Company: Lone Star Title Company Closing Date: November 4, 2024 Possession Date: November 4, 2024 (at time of closing)
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Seller shall convey good and marketable title by General Warranty Deed, free and clear of all liens except current year property taxes. Title insurance commitment shall be provided within 10 days of the Effective Date.

8. REAL ESTATE AGENTS

Buyer's Agent Name: Marcus T. Okonkwo License No.: TX-0573291 Brokerage: Realty Austin LLC	Seller's Agent Name: Jennifer L. Vasquez License No.: TX-0481056 Brokerage: Kuper Sotheby's International Realty
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9. INCLUDED AND EXCLUDED ITEMS

Included Items: All built-in appliances (refrigerator, dishwasher, range/oven, microwave), ceiling fans, window treatments, garage door openers and remotes, outdoor storage shed, and all built-in shelving.

Excluded Items: Seller's personal property including the dining room chandelier (to be replaced with matching fixture prior to closing), all yard and garden equipment, and the mounted flat-screen television in the primary bedroom.

10. REPRESENTATIONS AND WARRANTIES

Seller represents that, to the best of Seller's knowledge, the Property is free of material defects not disclosed herein, there are no pending litigation or code violations affecting the Property, and all utility systems are in working order. This Agreement is conditioned on Seller's completion and delivery of the Texas Seller's Disclosure Notice (T.A.R. Form 1406) within 3 days of execution.

11. GOVERNING LAW

Governing Law: State of Texas. This Agreement shall be construed in accordance with the laws of the State of Texas and shall be subject to the Texas Property Code and Texas Real Estate Commission regulations.

SIGNATURES

Buyer: Robert J. Harrington & Karen L. Harrington Signature: _____ Date: October 3, 2024	Seller: Patricia A. Donovan Signature: _____ Date: October 3, 2024
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